BY ORDER OF THE COMMANDER,
354TH FIGHTER WING (PACAF)

354 FW INSTRUCTION 31-203

4 SEPTEMBER 2003

Security

DISPOSITION OF PRIVATELY-OWNED PROPERTY

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements DoD 4160.21-M, *Defense Reutilization and Marketing Manual*, and AFPD 31-2, *Law Enforcement*, concerning disposition of privately owned property under custody or control of a military department. This instruction applies to any person who finds or disposes of unclaimed property on Eielson AFB.

SUMMARY OF REVISIONS

This document is substantially revised and must be completely reviewed.

1. GENERAL: Lost, abandoned, or unclaimed property is any privately owned personal property that has come into the custody or control of any military department and is unclaimed by the owner. Contraband items such as illicit drugs, illegal weapons, explosives, expired or mutilated military identification cards, etc., are not considered lost or abandoned and cannot be claimed by the original owner(s).

2. RESPONSIBILITIES:

2.1. Individuals will:

2.1.1. Report abandoned property found on Eielson AFB to the 354th Security Forces Squadron (354 SFS) Security Forces Control Center (SFCC), building 434.

2.1.2. Return found property to the owner or surrender it to 354 SFS/Investigations (SFOI). Failure to return property to the owner or surrender it to the proper authorities is larceny under Alaska State Law (Section 11.46.160).

2.1.3. People surrendering property to military control may, under some circumstances, reclaim it later. The finder must submit a written request through the SF Property Custodian (354 SFS/SFOI)

to the Chief, Military Justice (354 FW/JA), for final approval. The request to claim property must be made prior to final disposition of the property.

2.1.4. Individuals finding contraband or firearms cannot submit a request to claim these items.

2.2. Base Agencies (e.g., Lodging, Fitness Center, Recreational Services, etc.) Maintaining a Temporary Lost and Found will:

2.2.1. Contact 354 SFS/SFOI, for disposition of property.

2.2.2. Appoint a primary and alternate custodian and provide a copy of the appointment letter to 354 SFS/SFOI.

2.3. Lost and Found Property Custodians will:

2.3.1. Maintain a logbook containing their agency's property transactions.

2.3.2. Post notices indicating the location and point of contact for their agency's lost and found.

2.3.3. Keep all property in safekeeping to prevent theft, pilferage, or unwarranted deterioration.

2.3.4. Dispose of the following items immediately: toilet articles, cosmetics, used or soiled personal items, and undergarments having no value except to the original owner. The responsible agency will maintain the written inventory and documentation of destruction for one year.

2.3.5. Maintain time-sensitive property such as identification cards, driver's licenses, and credit cards for 7-days and then turn them over to 354 SFS/SFOI. Maintain other property for 30-days. Base agencies are responsible for contacting identified property owners.

2.4. Central Dormitory Management will:

2.4.1. Post a notice in a prominent location indicating location and point of contact for lost and found property.

2.4.2. Post a written notice 30-days prior to collecting bicycles or cutting locks to cages suspected of containing abandoned property.

2.4.3. Maintain property they recover until final disposition.

2.4.4. Provide 354 SFS/SFOI with a written inventory and coordinate final disposition with him or her.

2.5. Chief, Security Forces; appoints Property Custodians in writing.

2.6. The 354 SFS/SFOI is responsible for training base agency custodians and for the overall management of Eielson's Abandoned Private Property Program. The 354 SFS/SFOI is responsible for advertising property in media available to the majority of the local populace. The 354 SFS/SFOI also maintains the inventory record and documentation of property destruction within the property book.

2.7. Property Board Chairman and Board:

2.7.1. Consists of a minimum of three active duty personnel in the rank of TSgt or above, not assigned to the 354 SFS. The 354 MSG/CC appoints the board chairman and submits an appointment letter to 354 SFS/SFOI. The board chairman will then ensure two additional personnel are assigned to be members of the board.

2.7.2. One or more members of the board will, as necessary, inspect the found property to determine a fair market value if any. The board member annotates the value on the property inventory sheet or on the AF Form 52, *Evidence Tag*.

2.7.3. The board is responsible for disposition of all privately owned property. The chairman or representative will determine the method of disposition as guided by 354 SFS/SFOI and the Defense Reutilization and Marketing Office (DRMO) manual.

3. CONTROL and DISPOSITION of PROPERTY:

3.1. If the owner is not identified and the property has no intrinsic value except to the original owner, it is destroyed as directed by the board. The destruction must be documented on the property inventory sheet or on the AF Form 52.

3.2. If the owner is not identified and the board assesses a value of less than $300, the property will be disposed of as directed by the board. If the board assesses a value of more than $300, the property will be kept for 45-days and disposed of as directed by the board.

3.3. Bicycles and other property may be released to the Chapel to use in the Airmen's Attic if it is not cost effective to transfer the property to DRMO.

3.4. The 354 SFS/SFOI will dispose of vehicles according to 354 FWI 31-201, *Eielson AFB Vehicle Code*.

3.5. The 354 SFS/SFOI will dispose of government property through base supply channels.

3.6. If the owner of the property is identified, 354 SFS/SFOI will maintain it for 120-days from the date the owner was notified in writing.

3.7. Any person wishing to claim property must show reasonable proof of ownership. The owner, heirs, next of kin, or legal representative can claim the property anytime prior to final disposition.

3.8. The 354 SFS/SFOI will destroy, or return to the issuing agency, time sensitive property such as credit cards, driver's license, and ID cards within 120-days. Maintain the destruction letter from the board and the AF Form 52.

3.9. The 354 SFS/SFOI will dispatch notices in writing via certified mail or return receipt requested to all property owners outside the local area or to personnel in the local area who fail to claim their property.

3.10. If the owner wishes to claim his/her property and will not or cannot respond to the office of the 354 SFS/SFOI, 354 SFS/SFOI will mail or ship the property to the owner. Advise the owner they may incur part or all of the expenses generated in returning the property. Method of return is at the discretion of the board, unless the property owner makes other arrangements.

3.11. If after 120-days, the owner fails to respond to the notice or fails to make arrangements to claim the property, 354 SFS/SFOI will dispose of it as directed by the board.

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